



MEMORANDUM

To: Kaaren Hardy-Hunt
Office of Archaeology and Historic Preservation
1300 Broadway
Denver, CO 80203

From: Michael G. Figgs
Dowe Flats Environmental Studies Coordinator

Date: December 6, 1994

Re: Dowe Flats Mining and Reclamation Project, Southdown, Inc.
Colorado Mined Land Reclamation Board File No. M-93-041
Boulder County Permit No. SU-93-14 and V-93-8

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Division of Minerals & Geology

Enclosed herein is a description of the Southdown's Dowe Flats project permit review process with Boulder County. This information is being submitted at your request for evidence of a Boulder County process with respect to interim clearance by OAHP of Mined Land Reclamation Board permit conditions regarding this project in order for Southdown to begin limited haul road construction. This limited construction project includes one box culvert over each of the following irrigation ditches: Palmerton, Rough and Ready, and Supply; bridge piers and abutments in the Highland Ditch.

Project Research

The Dowe Flats environmental studies team began work in 1987 with the vegetation, agriculture, wetlands, and wildlife domains. The archaeology domain was started in 1989, and the historic domain started in 1990 under Steven F. Mehls, Western Historical Studies, Inc. Dr. Mehls conducted a literature review and pedestrian survey of the project area, with the findings submitted in report form (Mehls, 1990). The four irrigation ditches which are to be crossed by the haul road were originally recorded during this first historic survey, and a range of mitigation plans was recommended at that time (*ibid.*, page 34).

Boulder County Permit Application

Southdown accepted the recommendations found in the Mehls 1990 report, and incorporated these recommendations in a draft Boulder County permit application in 1991. When the permit application was submitted to Boulder County on June 1, 1993, the Mehls 1990 report was included in its entirety as a Technical Appendix to the permit application, and portions of the report were summarized in the text of the permit application, including the proposed mitigation for the haul road ditch crossings (SHB AGRA, 1993, pages 51-54).

Permit Referral

Boulder County Land Use staff determined the permit application to be complete, and on June 7, 1994 the permit application was referred to more than 75 public agencies and interested citizen groups. Referral entities with an interest in historic preservation included the OAHP, the Boulder Historical Society, and the Lyons Redstone Museum. During the referral period, representatives of Southdown met and discussed the project in detail with the Boulder Historical Society and Lyons Redstone Museum.

The referral period was officially closed on August 13, 1994. The Dowe Flats permit application referral period was a significant extension of the typical 30 day referral period, and was agreed upon by Southdown and County staff. In addition, County staff continued to accept all public comment up to the day of the final Board of County Commissioners hearing on May 26, 1994.

Parks and Open Space Department

The permit application was then examined by the Parks and Open Space Department (POSD). POSD provided its first official position in a staff memo on November 9, 1993. A copy of this memo is enclosed. The four irrigation ditches are discussed under Section 8F on pages 9 and 10. The POSD recommendation regarding cultural resources is found in Section 13. (A.) (9.) on pages 23 and 24.

The general POSD recommendations required an overhaul of the proposed reclamation plan, which required a 75 day delay in the permit process. On behalf of Southdown, SHB AGRA, Inc., responded to POSD on January 28, 1994. A copy of this document is enclosed. Southdown agreed to the POSD recommendations regarding cultural resource management with one exception, blast monitoring of the St. Vrain Supply Canal tunnel for blasting impacts, since the owner of the facility was not interested in cooperating. POSD reviewed the new plan and responded with an updated recommendation on February 4, 1994. A copy of this memo is enclosed. Staff recommendations regarding cultural resources remained similar, with a request for road construction to be monitored for subsurface archaeological sites, and removal of the request to monitor the tunnel.

Parks and Open Space Advisory Committee

Copies of both the November 9, 1993 and February 4, 1994 staff recommendations were forwarded to the Parks and Open Space Committee (POSAC). The POSAC Dowe Flats permit public hearing was held on February 10, 1994. POSAC unanimously recommended approval of the permit application, with conditions. POSAC was primarily concerned with the disposition of the land after mining is completed. Minutes and staff summary of the hearing are enclosed in the memo to Rob Helmick, Land Use Department, from Parks staff, and dated March 7, 1993.

Draft Cultural Resource Management Plan

In January of 1994 the Dowe Flats Cultural Resource Management Plan (Mehls, *et al.*, 1994) was completed in draft form (DCRMP), and placed on referral in time for the POSAC and Historic Preservation Advisory Board hearings. In addition, Southdown mailed the DCRMP to appropriate parties on the permit referral list, including OAHP, Boulder Historical Society, and Lyons Redstone Museum. The DCRMP (pages 132-134) addresses potential effects to the irrigation ditches and outlines a mitigation plan. This mitigation plan is consistent with the mitigation described in Mehls (1990) and SHB AGRA (1993).

Historic Preservation Advisory Board

The Boulder County Historic Preservation Advisory Board (HPAB) held its Dowe Flats permit public hearing on March 3, 1994. HPAB unanimously recommended approval of the permit application, with conditions. The primary request of HPAB was landmark status for the Montgomery School, but Southdown could not commit to this since Southdown does not own Montgomery School. The meeting packet and staff recommendation are enclosed. Staff included text from Mehls (1990) in this packet, specifically that portion that discusses haul road ditch crossing mitigation.

Project Summary

Prior to the Planning Commission hearing, Southdown created the Dowe Flats Project Summary, Mining and Reclamation, dated March 1994. The purpose of this document was to summarize all of the project related research, comprising more than 2,000 pages of reports, into major subjects for easy access by staff and commission members. Pages 36 and 37 list twenty-two specific permit terms and conditions that Southdown had agreed to at this point in the process, in addition to other commitments of record. A copy is enclosed.

Land Use Department

The Land Use Department reviewed the permit application and made recommendations to the Planning Commission and Board of County Commissioners. Parks staff handled open space, ecological, and cultural resource issues, with referral to POSAC and the Historic Preservation Advisory Board. Once these two boards made recommendations, Land Use staff incorporated their recommendations into the Land Use recommendations.

Land Use staff directed several requests for information to the applicant in the letter to Paul Banks, SHB AGRA, Inc., from Robert Helmick, Land Use Department, dated January 11, 1994. Southdown responded to these requests by means of a letter to Rob Helmick from Paul Banks, dated February 22, 1994. Copies of this correspondence are enclosed. Primary issues were the reclamation plans, mining operations, and future reviews of the permit. Significant to ditch crossing issue is a discussion regarding transportation methods and routes from the quarry to the plant. The Land Use staff was interested in a conveyor alternative, whereas Southdown had proposed truck haul.

Planning Commission

The Boulder County Planning Commission reviewed and approved, with 15 additional conditions, the permit application on March 30, 1994. The Planning Commission was concerned primarily with technical issues regarding engineering, mine operations, and general project design. Land Use staff comments and recommendations to the Planning Commission are found in the enclosed packet dated March 30, 1994.

Board of County Commissioners

The Boulder County Board of County Commissioners (BOCC) unanimously approved the permit application on May 26, 1994. Terms and conditions are described in the enclosed Resolution 94-81, dated June 28, 1994. With respect to cultural resources, Southdown agreed to donate conservation easements on archaeological sites on Indian Mountain, donate 500 acres of land with archaeological sites to be preserved as open space, and submit management plans before commencement of mining. The resolution also includes Southdown's commitments of record, including the enclosed project summary dated May 16, 1994.

Development Agreement

This document is the binding legal agreement between Southdown and the BOCC. It was completed and signed on July 14, 1994. Section 2 references the BOCC resolution and the permits terms and conditions described therein. Section 2 also refers to the permit application docket, which includes the permit application, referral, staff review, board and commission public hearings. A copy is enclosed.

Management and Monitoring Plans

On September 12, 1994, in fulfillment of a permit term and condition, the Management and Monitoring Plans, Dowe Flats Project, were submitted to Boulder County. A copy is enclosed. The plans include archaeological and historical resources monitoring. Also included is a plan for annual updates and/or status reports on the Cultural Resource Management Plan. The CRMP updates are to include findings and evaluations of mitigation activities.

Administrative Review

Representatives of Southdown met with Parks and Open Space Department staff in the field on October 31, 1994. The haul road ditch crossings and mitigation efforts were specifically discussed. Representatives met again with POSD staff, including the department director on November 10, 1994. Again, the haul road ditch crossings and mitigation efforts were specifically discussed. On both occasions, staff indicated no conflict with the construction project. Correspondence describing these meetings was delivered to OAHP under separate cover.

Conclusion

The significance of the NRHP eligible irrigation ditches was recognized early in the project. Mitigation was proposed for the haul road crossings at an early stage of planning, and the mitigation proposal remained consistent throughout project planning and permit phases. These issues were specifically reviewed by Parks and Open Space and Land Use staff, as evidenced by the presence of the ditch mitigation text in the staff memorandums to County boards and commissions. Four County boards and commissions were given the opportunity to comment on these plans.

The BOCC resolution includes Southdown's commitments of record. According to County interpretation, commitments of record include plans and proposals found in permit documents and technical reports, as well as public statements at hearings. Southdown believes it is committed to a reasonable program of mitigation for the haul road ditch crossings as generally described in Mehls (1990), SHB AGRA (1993), and Mehls, *et al.* (1994).

The Parks and Open Space Department reviewed the ditch crossing construction plan in the field. Mitigation plans were described. County staff had no objection.

Literature Cited

Mehls, Steven F., M. Burney, M. Grant and M. Figgs. 1994. Draft Prehistoric, Historic and Geologic Properties Preservation Plan, Dowe Flats, Boulder County, Colorado.

Mehls, Steven F. 1990. Historic Period Literature Review and Reconnaissance Survey of Dowe Flats. Western Historical Studies, Inc.

SHB AGRA. 1993. Application for Boulder County Special Use Permit and Site Specific Development Plan for mining and reclamation, Dowe Flats.

Kaaren Hardy-Hunt, Office of Archaeology and Historic Preservation
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encl.

cc: letter only , without encl.
Susan Collins, Office of Archaeology and Historic Preservation
Jim Greene, Office of Archaeology and Historic Preservation
William York-Feim, Division of Minerals and Geology
Rich Koopman, Boulder County Parks and Open Space Department
John Lohr, Plant Manager, Southdown, Inc.
Paul Banks, AGRA Earth and Environmental, Inc.
Carol Drake Mehls, Western Historical Studies, Inc.